

		cannot find the violation is willful. Therefore, the request for terminating and monetary sanctions is DENIED. Plaintiff's counsel is ORDERED to appear at the hearing to discuss whether in light of the passing of Plaintiff, the Complaint will be dismissed or a personal representative or successor in interest will be substituted for decedent. Moving Defendant to give notice.
6.	ZHANG VS. KING 2024-01430779	1. MOTION FOR LEAVE TO INTERVENE Intervenor Daniel Belshaw's Motion for Leave to Intervene is GRANTED. Intervenor's requests for judicial notice are granted. "At any time after notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice. However, a person who is not a party to the action shall obtain leave to intervene from the court at or before the time the party brings the motion to expunge the notice. Evidence or declarations may be filed with the motion to expunge the notice." (Code Civ. Proc., § 405.30.) Intervenor moved for leave to intervene and to expunge the notice at the same time. Thus, his Motions are timely. "The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either of the following conditions is satisfied: [¶] (A) A provision of law confers an unconditional right to intervene. [¶] (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties." (Code Civ. Proc., § 387(d)(1).) Intervenor has a sufficient interest in the litigation to allow intervention. A property owner whose property has been mistakenly encumbered by a lis pendens clearly has such an interest, as the lis pendens "acts as a cloud against the property, effectively preventing sale or encumbrance until the litigation is resolved or the lis pendens is expunged." (<i>Amalgamated Bank v. Superior Court</i> (2007) 149 Cal.App.4th 1003.) Thus, the Motion is granted. 2. MOTION TO EXPUNGE LIS PENDENS Intervenor Daniel Belshaw's Motion to Expunge Lis Pendens is GRANTED.

The Lis Pendens recorded in Document No. 2025000167279 in the official records of the County of Orange is ORDERED expunged.

Intervenor's requests for judicial notice are granted.

Plaintiffs' unserved opposition is considered; however, Plaintiffs are cautioned to serve any future papers on all parties. Additionally, Plaintiffs improper requests for affirmative relief within their opposition are not considered.

"Any notice of pendency of action shall be void and invalid as to any adverse party or owner of record unless the requirements of Section 405.22 are met for that party or owner and a proof of service in the form and content specified in Section 1013a has been recorded with the notice of pendency of action." (Code Civ. Proc., § 405.23.) "Except in actions subject to Section 405.6, the claimant shall, prior to recordation of the notice, cause a copy of the notice to be mailed, by registered or certified mail, return receipt requested, to all known addresses of the parties to whom the real property claim is adverse and to all owners of record of the real property affected by the real property claim as shown by the latest county assessment roll." (Code Civ. Proc., § 405.22.) Section 1013a requires proof of service to be shown by an affidavit or certificate "setting forth the exact title of the document served and filed in the cause" or by service by the clerk of a court of record. Plaintiffs have failed to file a proof of service of the recordation of lis pendens. Thus, the lis pendens is void and invalid and should be expunged.

Assuming arguendo, the lis pendens was not void and invalid, Plaintiffs have failed to present sufficient evidence to establish a probable validity of their claims as to Intervenor. Code of Civil Procedure section 405.31 mandates that "the court shall order the notice expunged if the court finds that the pleading on which the notice is based does not contain a real property claim." A "real property claim" is defined as "the cause or causes of action in a pleading which would, if meritorious, affect [¶] (a) title to, or the right to possession of, specific real property." (Code Civ. Proc., § 405.4.) "The claimant shall have the burden of proof" in expungement proceedings. (Code Civ. Proc., § 405.30.) "Plaintiff may establish the prima facie merit of his action by competent material allegations in a verified complaint, by affidavit, or by other proof allowed by the trial court." (*McKnight v. Superior Court* (1985) 170 Cal.App.3d 291, 299.)

Plaintiffs' First Amended Complaint is not verified and they present no affidavit in support of their opposition. Plaintiffs claim the granting of the writ of attachment is also insufficient proof because the facts supporting a claim for money based contracts are not analogous with a claim for constructive trust and the Court found probable validity due to Defendant being in default. Thus, Plaintiffs have failed to demonstrate a probable validity of their constructive

		trust claim, which is the only claim which purports to affect the title of the properties. Accordingly, the lis pendens is expunged.
7.	WEBER VS. MORADO 2025-01511904	DEMURRER TO FIRST AMENDED COMPLAINT Defendants Corinne Morado, Gencare Connects, Inc., and Daian Corporation's Demurrer to Plaintiff's First Amended Complaint is CONTINUED to 8/4/26, at 9:00 a.m. in Department C32 as Defendants' counsel did not sufficiently meet and confer prior to filing the demurrer. Before filing a demurrer, the moving party shall meet and confer with the opposing party in person, by telephone, or by video conference at least 5 days before a responsive pleading is due to see if a resolution can be reached on the objections to the pleading. (Code Civ. Pro., § 430.41, subds. (a), (a)(2).) Counsel for Corinne Morado, Gencare Connects, Inc., and Daian Corporation states his office sent Plaintiffs' counsel a letter setting forth grounds for demurrer on 1/26/26. (Tong Decl., ¶ 2, Ex. A.) Counsel then attempted to follow up with Plaintiffs' counsel by telephone by leaving voicemails and also sending emails. (Tong Decl., ¶ 2, Ex. B.) Plaintiffs' counsel did not return his phone calls or email. (Tong Decl., ¶ 3.) This does not satisfy the meet and confer requirement. The Court ORDERS the parties to meaningfully meet and confer in person, by telephone, or by video conference (email/letter is insufficient) concerning the issues raised in the demurrer. Defendants are to file and serve a declaration no later than nine (9) court days before the hearing date describing the parties' meet and confer efforts, and specifying what issues have been resolved, or remain for the Court to resolve. If no declaration is timely filed, the Court will construe this to mean that the issues have been resolved and will take the demurrer off-calendar.
8.	LAW OFFICES OF MARK B. PLUMMER, PC VS. ALAI 2018-01002061	MOTION FOR SUMMARY JUDGMENT AND/OR ADJUDICATION The Motion for Summary Judgment or Adjudication of the First Amended Cross-Complaint (FACC) of Nili N. Alai, M.D. (Alai) and Siamak Nabili, M.D. (Nabili) by Cross-Defendants Law Offices of Mark B. Plummer (Law Office) and Mark B. Plummer (Plummer) (sometimes collectively "Movants") is DENIED. Movants' request for judicial notice is granted as to the court records specified therein. (Evid. Code § 452.)